

STRUCTURE OF GOVERNMENT & CONSTITUTIONAL DEVELOPMENT, 1757–1858

THE COMPANY-STATE CONSTITUTIONAL PROBLEM → REGULATING ACT 1773: FIRST → WHY THE 1773 DESIGN → AMENDING ACT 1781: TARGETED → PITT'S INDIA ACT 1784 → EXECUTIVE CONSOLIDATION, 1786-1793

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • source generation g3 and all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles

00

STAGE 00 THE COMPANY-STATE CONSTITUTIONAL PROBLEM

THE COMPANY-STATE CONSTITUTIONAL PROBLEM

LONDON COMPANY

SHAREHOLDERS, DIRECTORS, TRADE AND PATRONAGE

INDIAN SOVEREIGN

REVENUE, WAR, JUSTICE AND LEGISLATION AFTER DIWANI

PRIVATE PROFIT JOINED TO PUBLIC COERCIVE POWER

PARLIAMENTARY RESPONSE

REGULATE, SUPERVISE, CENTRALISE AND FINALLY TRANSFER RULE.

LONDON COMPANY → shareholders, directors, trade and patronage

INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani

CONTRADICTION → private profit joined to public coercive power

PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

CORE CLAIM

- LONDON COMPANY → shareholders, directors, trade and patronage
- INDIAN SOVEREIGN → revenue, war, justice and legislation after Diwani

MECHANISM

- CONTRADICTION → private profit joined to public coercive power
- PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

CONSEQUENCE / LIMIT

- MUST REMEMBER: Regulating Act 1773, Pitt's India Act 1784, Charter Acts 1813, 1833 and 1853, and Government of India Act 1858 changed different corporate, executive, legislative and patronage arrangements.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PARLIAMENTARY RESPONSE → regulate, supervise, centralise and finally transfer rule.

01

STAGE 01 REGULATING ACT 1773: FIRST FRAMEWORK

REGULATING ACT 1773

FIRST FRAMEWORK

GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR

WARREN HASTINGS FIRST

SUBORDINATED IN WAR AND PEACE, WITH PRACTICAL AMBIGUITIES

SUPREME COURT AT CALCUTTA

BEGINS 1774 UNDER CROWN-APPOINTED JUDGES

DIRECTORS REPORT TO MINISTRY

GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first

BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities

SUPREME COURT AT CALCUTTA → begins 1774 under Crown-appointed judges

DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

CORE CLAIM

- GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first
- BOMBAY / MADRAS → subordinated in war and peace, with practical ambiguities

MECHANISM

- SUPREME COURT AT CALCUTTA → begins 1774 under Crown-appointed judges
- DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

CONSEQUENCE / LIMIT

- GOVERNOR-GENERAL OF BENGAL + COUNCIL OF FOUR → Warren Hastings first
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTORS REPORT TO MINISTRY → oversight begins, but Company rule continues.

02

STAGE 02 WHY THE 1773 DESIGN MALFUNCTIONED

WHY THE 1773 DESIGN MALFUNCTIONED

COUNCIL ARITHMETIC

FRANCIS-CLAVERING-MONSON MAJORITY CAN OUTVOTE HASTINGS

JURISDICTIONAL OVERLAP

SUPREME COURT CLASHES WITH COMPANY REVENUE AND CIVIL COURTS

NAND KUMAR, PATNA AND COSSIJURAH EXPOSE UNCERTAINTY

CONSTITUTIONAL REPAIR FOLLOWS ADMINISTRATIVE CONFLICT, NOT A SMOOTH MASTER

COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings

JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

CASES → Nand Kumar, Patna and Cossijurah expose uncertainty

LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CORE CLAIM

- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

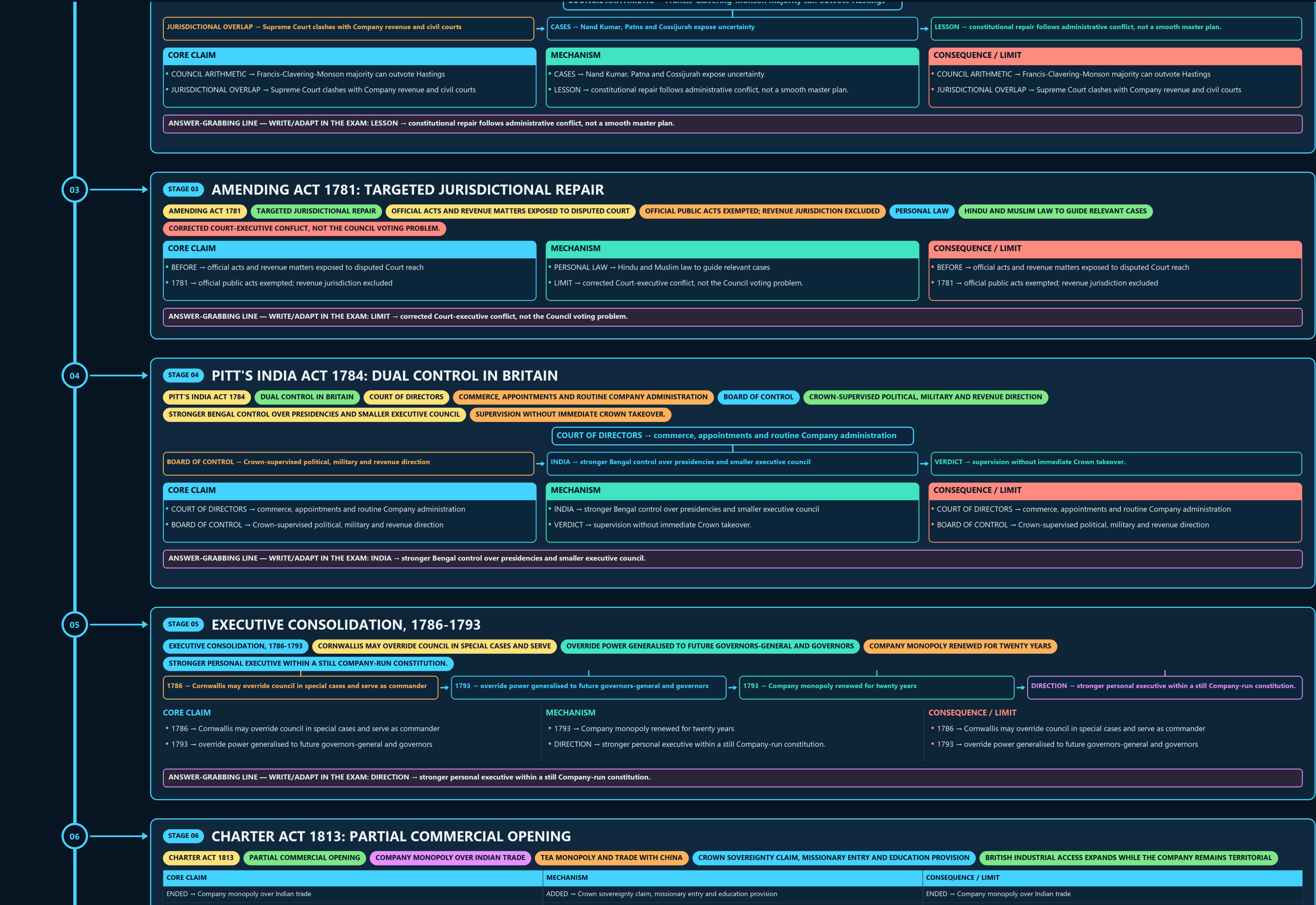
MECHANISM

- CASES → Nand Kumar, Patna and Cossijurah expose uncertainty
- LESSON → constitutional repair follows administrative conflict, not a smooth master plan.

CONSEQUENCE / LIMIT

- COUNCIL ARITHMETIC → Francis-Clavering-Monson majority can outvote Hastings
- JURISDICTIONAL OVERLAP → Supreme Court clashes with Company revenue and civil courts

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: LESSON → constitutional repair follows administrative conflict, not a smooth master plan.



- 1793 → override power generalised to future governors-general and governors

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: DIRECTION → stronger personal executive within a still Company-run constitution.

STAGE 06 CHARTER ACT 1813: PARTIAL COMMERCIAL OPENING

BRITISH INDUSTRIAL ACCESS EXPANDS WHILE THE COMPANY REMAINS TERRITORIAL

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
ENDED → Company monopoly over Indian trade	ADDED → Crown sovereignty claim, missionary entry and education provision	ENDED → Company monopoly over Indian trade
RETAINED → tea monopoly and trade with China	MEANING → British industrial access expands while the Company remains territorial ruler.	RETAINED → tea monopoly and trade with China
CORE CLAIM - ENDED → Company monopoly over Indian trade - RETAINED → tea monopoly and trade with China	MECHANISM - ADDED → Crown sovereignty claim, missionary entry and education provision - MEANING → British industrial access expands while the Company remains territorial ruler.	CONSEQUENCE / LIMIT - ENDED → Company monopoly over Indian trade - RETAINED → tea monopoly and trade with China

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: MEANING — British industrial access expands while the Company remains territorial ruler.

STAGE 07 CHARTER ACT 1833: ALL-INDIA CENTRALISATION

MACAULAY AND CODIFICATION DRIVE

GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first

→ **COMPANY COMMERCE ENDS** → corporation becomes a purely administrative agency.

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
• GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first • PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India	• LAW MEMBER + LAW COMMISSION → Macaulay and codification drive • COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.	• GG OF BENGAL → GOVERNOR-GENERAL OF INDIA; William Bentinck first • PRESIDENCY LEGISLATURES → legislative power centralised in the Government of India

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: COMPANY COMMERCE ENDS → corporation becomes a purely administrative agency.

STAGE 08 THE 1833 EQUALITY PROMISE AND PRACTICE GAP

ANALYTICAL USE

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ANALYTICAL USE → liberal language coexists with an unrepresentative imperial state.

STAGE 09 CHARTER ACT 1853: LEGISLATURE AND RECRUITMENT

OPEN COMPETITION

- **LIMIT** → London examination and access barriers make formal openness unequal in practice.

CORE CLAIM	MECHANISM	CONSEQUENCE / LIMIT
- EXECUTIVE COUNCIL → legislative members added for a distinct law-making function - CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament	- OPEN COMPETITION → civil-service recruitment principle implemented through later rules - LIMIT → London examination and access barriers make formal openness unequal in practice.	- CLOSE DISTINCTION: Distinguish enactment from commencement and policy from implementation: the 1833 Act ended Company commerce, while open competitive recruitment developed through later measures.

CHARTER ACT 1853

LEGISLATURE AND RECRUITMENT

EXECUTIVE COUNCIL

LEGISLATIVE MEMBERS ADDED FOR A DISTINCT LAW-MAKING FUNCTION

CENTRAL LEGISLATIVE COUNCIL

PROCEDURE RESEMBLES A SMALL OFFICIAL PARLIAMENT

OPEN COMPETITION

CIVIL-SERVICE RECRUITMENT PRINCIPLE IMPLEMENTED THROUGH LATER RULES

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function

CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

OPEN COMPETITION → civil-service recruitment principle implemented through later rules

LIMIT → London examination and access barriers make formal openness unequal in practice.

CORE CLAIM

EXECUTIVE COUNCIL → legislative members added for a distinct law-making function

CENTRAL LEGISLATIVE COUNCIL → procedure resembles a small official parliament

MECHANISM

OPEN COMPETITION → civil-service recruitment principle implemented through later rules

LIMIT → London examination and access barriers make formal openness unequal in practice.

CONSEQUENCE / LIMIT

CLOSE DISTINCTION: Distinguish enactment from commencement and policy from implementation: the

1833 Act ended Company commerce, while open competitive recruitment developed through later measures.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 1833 Act ended Company commerce, while open competitive recruitment developed through later measures.

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STAGE 10

GOVERNMENT OF INDIA ACT 1858: TRANSFER, NOT REINVENTION

GOVERNMENT OF INDIA ACT 1858

TRANSFER, NOT REINVENTION

COMPANY RULE, COURT OF DIRECTORS AND BOARD OF CONTROL

SECRETARY OF STATE FOR INDIA ASSISTED BY AN INDIA COUNCIL

GOVERNOR-GENERAL ALSO BECOMES VICEROY; CANNING FIRST

CENTRAL EXECUTIVE, COUNCILS, CODES AND BUREAUCRACY LARGELY SURVIVE TRANSFER.

EVIDENCE LIMIT

READ STATUTORY TEXT WITH COMPANY PRACTICE AND PARLIAMENTARY INQUIRY

ABOLISHED → Company rule, Court of Directors and Board of Control

CREATED → Secretary of State for India assisted by an India Council

INDIA → Governor-General also becomes Viceroy; Canning first

CONTINUITY → central executive, councils, codes and bureaucracy largely survive transfer.

CORE CLAIM

ABOLISHED → Company rule, Court of Directors and Board of Control

CREATED → Secretary of State for India assisted by an India Council

MECHANISM

INDIA → Governor-General also becomes Viceroy; Canning first

CONTINUITY → central executive, councils, codes and bureaucracy largely survive transfer.

CONSEQUENCE / LIMIT

EVIDENCE LIMIT: Read statutory text with Company practice and parliamentary inquiry

constitutional centralisation did not remove distance, discretion, corruption or racial exclusion.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: ABOLISHED → Company rule, Court of Directors and Board of Control.

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STAGE 11

CONSTITUTIONAL LADDER, 1773-1858

CONSTITUTIONAL LADDER, 1773-1858

1773 OVERSIGHT

1781 JURISDICTIONAL REPAIR

1784 CROWN SUPERVISION

1813 MONOPOLY BREACH

1833 CENTRAL GOVERNMENT + CODIFICATION

1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT

1858 CROWN RULE

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION

1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT

1858 CROWN RULE → sovereign changes; colonial centralisation remains.

CORE CLAIM

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION

1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

MECHANISM

1853 LEGISLATIVE SPECIALISATION + COMPETITIVE RECRUITMENT

1858 CROWN RULE → sovereign changes; colonial centralisation remains.

CONSEQUENCE / LIMIT

1773 OVERSIGHT → 1781 JURISDICTIONAL REPAIR → 1784 CROWN SUPERVISION

1813 MONOPOLY BREACH → 1833 CENTRAL GOVERNMENT + CODIFICATION

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: 1858 CROWN RULE → sovereign changes; colonial centralisation remains.

E

EXTRA

SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

THE COMPANY'S TERRITORIAL AUTHORITY AFTER 1765 CREATED A CONTRADICTION

A PROFIT-SEEKING COMMERCIAL

CORPORATION WAS COLLECTING REVENUE, MAINTAINING ARMIES AND DISPENSING JUSTICE

THE REGULATING ACT, 1773 WAS PARLIAMENT'S FIRST SERIOUS ATTEMPT

GIVING BENGAL PRIMACY, ESTABLISHING A GOVERNOR-GENERAL-IN-COUNCIL AND CREATING THE

THE ACT'S DEFECTS WERE IMMEDIATE

CONFLICT BETWEEN THE GOVERNOR-GENERAL AND COUNCIL, TENSION BETWEEN THE

OPTIONAL SOURCE DEPTH

The Company's territorial authority after 1765 created a contradiction: a profit-seeking commercial

corporation was collecting revenue, maintaining armies and dispensing justice in India.

The Regulating Act, 1773 was Parliament's first serious attempt to control this contradiction by

giving Bengal primacy, establishing a Governor-General-in-Council and creating the Supreme Court at Calcutta.

ADVANCED DEBATE

The Act's defects were immediate: conflict between the Governor-General and Council, tension between the Supreme

Court and Company courts, and unclear limits of Bombay and Madras in war and diplomacy.

The Amending Act, 1781 attempted to remove these practical defects by

clarifying jurisdiction and protecting official actions from excessive judicial interference.

LEGACY / NUANCE

CAUTION: The constitutional story is therefore not a smooth liberal evolution

it is a sequence of emergency repairs to keep imperial extraction administratively stable.

Pitt's India Act, 1784 produced dual government in Britain: the Court of Directors managed Company

affairs while the Board of Control supervised political matters in the name of the Crown.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.